

address, as the previous attorney. Thus, the court finds proper service.

The Declaration purports to be a statement from a custodian of records at American Express. The statement reflects that all the elements of a breach of contract are established. However, while the affiant of the declaration provides a handwritten signature on the declaration, their name is illegible, and no printed name is offered. The identity of the affiant remains a mystery. This is insufficient as evidence.

Disposition

The Motion will be continued to 9/29/26, 9am.

Plaintiff to provide a Declaration with a legible indication of the name of the person to whom the affiant's signature belongs.

Plaintiff to provide notice of the hearing to Defendant.

Plaintiff to file Order reflecting this ruling.

9. 9:00 AM CASE NUMBER: L25-03457

CASE NAME: CAPITAL ONE, N.A. VS. JESSICA IBARRA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT
PURSUANT TO CCP 6646 FILED BY PLTF. ON 04/07/2026**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to enter judgment pursuant to stipulation, along with a Declaration and Memo of Costs. The motion was served by mail to the address of Defendant's counsel.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$11,057.28, less any credits for payments received.

The written stipulation was filed with the court.

Defendant defaulted on the payments.

Defendant made total payments in the amount of \$2,147.88.

Costs were 514.51.

Thus, the judgment amount should be \$9,423.91.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$9,423.91.

Plaintiff to file order on Motion, as well as submit Judgment, and provide notice to Defendant.

10. 9:00 AM CASE NUMBER: L25-03538

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. GISELLE GOMEZ

***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSANT TO STIPULATION**

FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion to enter judgment pursuant to stipulation. The Motion was filed on 2/2/6, with a hearing on 4/28/26, but on that date this court found that Plaintiff had not provided notice to Plaintiff, continued the Motion to 7/21/26, and ordered Plaintiff to properly notify Defendant.

As of this writing, there is no evidence that Plaintiff has provided any notice of the Motion to Defendant.

Disposition

This Motion will be dropped.

11. 9:00 AM CASE NUMBER: L25-04747

CASE NAME: JPMORGAN CHASE BANK N.A. VS. DANIEL TOMPKINS

***HEARING ON MOTION TO DEEM MATTERS ADMITTED (CONTINUED FROM 1-20-2026)**

FILED BY:

***TENTATIVE RULING**

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), that was originally scheduled for 1/20/26.

On that date, the court ruled that it would give Defendant another thirty days to submit substantially compliant responses to the discovery request.

On 2/17/26, Defendant filed document entitled, Opposition to Notice of Motion for Order ("Response"), and served it on counsel for Plaintiff. This Response contained responses to Plaintiff's requests for admission.